

Superior Court of Washington, County of _____

In the Guardianship of:

Respondent/s (*minors/children*)

Case Number: _____

Minor Guardianship Findings and Order

Clerk Code:

☐ Granted - Full (ORAPMG)

☐ Granted - Limited (ORAPLGM)

Clerk's action required: 1, 15, 24

Minor Guardianship Findings and Order

1. Guardianship Summary

Summarize the guardianship order below.

Date guardian appointed:		Next review date, if any:	
Children			
Child's Name	Letters Expire	Child's Name	Letters Expire
1.		2.	
3.		4.	
Guardian/s			
Name			
Address			
Phone			
Email			
Type/ Training	☐ Non-professional (Lay guardian). Training (<i>section 16</i>): ☐ completed ☐ required ☐ Certified professional guardian (CPGC)		
Limited/ Full	The guardianship is (<i>check one</i>): ☐ limited ☐ full (<i>If a parent has any visitation or decision-making authority, the guardianship is limited. See sections 18 and 20.</i>)		

	Parent 1	Parent 2
Name		
Address		
Phone		
Email		
☐ The court orders the following people must be notified in the future if any events described in section 17 happen. (<i>Optional.</i>)		
	Person Entitled to Notice	Person Entitled to Notice
Name		
Address		
Phone		
Email		

2. Guardianship Hearing

A hearing was held on a *Minor Guardianship Petition* for the children named above. The following people attended (*check all that apply*):

☐ Proposed guardian/s

☐ Guardian ad Litem or Court Visitor

☐ Parent/s (*name/s*) _____

☐ Children (*name/s*) _____

☐ Other (*name/s*) _____

The court considered the (*check all that apply*):

☐ written report of the Guardian ad Litem or Court Visitor,

☐ the testimony of witnesses,

☐ remarks of lawyers or parties,

☐ the documents filed in this case, and

☐ other _____.

➤ **Findings and Conclusions**

3. Tribal Heritage

*If there is a reason to know that a child has **tribal heritage** (including ancestry or familial political affiliation), the court must treat the child as an Indian child unless and until the affected tribe/s decide otherwise or decline to respond after receiving proper notice.*

*An **Indian child** is a child who is a member of an Indian tribe, or who is the biological child of an Indian tribe member and eligible for membership.*

☐ **None** of the children are Indian children. The state and federal Indian Child Welfare Acts do not apply to this case. The court makes this conclusion because (*check all that apply*):

☐ the Petitioner made a good faith effort to find out if any child in this case has tribal heritage. (RCW 13.38.050.) The court has received no information showing that any child has tribal heritage.

☐ the Petitioner notified the tribal agent of every tribe the children may have been eligible for membership in. List tribes notified: _____

Each tribe responded that the children were not tribal members and not eligible for membership.

☐ based on the following evidence about tribal heritage: _____

☐ **These children are Indian children:**

Children	Tribe/s
☐ All children ☐ (Name/s):	
☐ All children ☐ (Name/s):	

The federal and state Indian Child Welfare Acts apply to this case.

Notice to tribes – The Petitioner provided the required *Indian Child Welfare Act Notice* and a copy of the *Petition* to the agent for the tribe/s named above, the parents, and any Indian custodian.

Evidence – The evidentiary requirements of the Acts have been met as described below. (RCW 13.38.130)

Active efforts – The following active efforts were made to provide remedial services and rehabilitative programs designed to prevent the breakup of the Indian family:
(*Active efforts means: “a documented, concerted, and good faith effort to facilitate*

the parent's or Indian custodian's receipt of and engagement in" those services and programs. RCW 13.38.040.)

Serious emotional or physical damage – The court considered testimony from a qualified expert witness, as defined in RCW 13.38.130. The court finds by clear and convincing evidence that the children would likely suffer serious emotional or physical damage if they lived with either parent or an Indian custodian. The court makes this conclusion because:

4. Jurisdiction over Indian Children

- ☐ Does not apply. None of the children are Indian children.
- ☐ This court **can** decide this case for the Indian children because (*check one*):
- ☐ (*Children's names*): _____ are **not** domiciled or living on an Indian reservation, and are not wards of a tribal court. (25 U.S.C. § 1911)
- ☐ (*Children's names*): _____ **are** domiciled or living on an Indian reservation, or are wards of a tribal court, however (*check all that apply*):
- ☐ The children's tribe agrees to Washington state's concurrent jurisdiction.
- ☐ The children's tribe decided not to use its exclusive jurisdiction (expressly declined). (RCW 13.38.060)
- ☐ Washington state should claim emergency jurisdiction for children temporarily located off the reservation to protect the children from immediate physical damage or harm. (RCW 13.38.140)
- ☐ Other (*specify*): _____
-

5. Dependency Case

- ☐ There is no open dependency case for these children.
- ☐ There is an open dependency case for these children in _____ county under case number: _____. The court handling the dependency has signed an order allowing this court to proceed with this guardianship case.

6. Jurisdiction Over the Children

This court **can** decide this case for these children because (*check all that apply; if a box applies to all of the children, you may write "the children" instead of listing names*):

☐ **Exclusive, continuing jurisdiction** – A Washington court has already made a parenting plan, residential schedule, or custody order for the children, and the court still has authority to make other orders for (*children's names*): _____

☐ **Home state jurisdiction** – Washington is the children's home state because (*check all that apply*):

☐ (*Children's names*): _____ lived in Washington with a parent or someone acting as a parent for at least the 6 months just before this case was filed, or if the children were less than 6 months old when the case was filed, they had lived in Washington with a parent or someone acting as a parent since birth.

☐ There were times the children were not in Washington in the 6 months just before this case was filed (or since birth if they were less than 6 months old), but those were temporary absences.

☐ (*Children's names*): _____ do not live in Washington right now, but Washington was the children's home state sometime in the 6 months just before this case was filed, and a parent or someone acting as a parent of the children still lives in Washington.

☐ (*Children's names*): _____ do not have another home state.

☐ **No home state or home state declined** – No court of any other state (or tribe) has the jurisdiction to make decisions for (*children's names*) _____ or a court in the children's home state (or tribe) decided it is better to have this case in Washington **and**:

- The children and a parent or someone acting as a parent have ties to Washington beyond just living here; **and**
- There is a lot of information (substantial evidence) about the children's care, protection, education, and relationships in this state.

☐ **Other state declined** – The courts in other states (or tribes) that might be (*children's names*) _____'s home state have refused to take this case because it is better to have this case in Washington.

☐ **Temporary emergency jurisdiction** – Washington had temporary emergency jurisdiction over (*children's names*) _____ when the case was filed, and now has jurisdiction to make a final custody decision because:

- When the case was filed, the children were abandoned in this state, or the children were in this state and the children (or the children's parent or siblings) were abused or threatened with abuse;
- The court signed a temporary order on (*date*) _____ saying that Washington's jurisdiction will become final if no case is filed in the children's home state (or tribe) by the time the children have been in Washington for 6 months;
- The children have now lived in Washington for 6 months; **and**

- No case concerning the children has been started in the children's home state (or tribe).

[] Other reason (*specify*): _____

7. Background Records Checked

The court has (unless stated otherwise below):

- Checked the judicial information system for any information or proceedings relevant to placement of the children;
- Reviewed the records from the Department of Children, Youth, and Families provided in response to the court's *Order to DCYF to Release CPS Information*; and
- Reviewed the criminal history record from the Washington State Patrol for guardian and each adult living in guardian's home.

[] Other findings (*specify*): _____

8. Notice

All notices required by law have been given and proof of service has been filed.

9. Basis for Guardianship

The petition for guardianship should be **approved**. It is in the children's best interest to appoint a guardian and:

[] **Agreement** – The parent/s (*name/s*) _____ consent, after being fully informed of the nature and consequences of guardianship.

[] **Termination** – The parent/s (*name/s*) _____ rights have been terminated.

[] **Need** – The parent/s (*name/s*) _____ are **not** willing or able to provide for the support, care, education, health, safety, and welfare of a child under age 18 (exercise the parenting functions in RCW 26.09.004).

The approval is based on the following facts:

10. Guardian Nominated

(*Name/s*) _____ should be appointed as guardian of the children listed above. The guardian is in the best interest of the children.

Guardian/s was/were nominated by:

[] Parent/s (*name/s*) _____

[] A child age 12 or older.

- ☐ Petitioner/s.
- ☐ The parents or children nominated a guardian that was not in the best interest of the children. The court appointed the guardian in the best interest of the children.
(*Explain*) _____
- _____
- ☐ Other findings: _____
- _____

11. Limits on Guardian's Authority

- ☐ No limits should be put on the guardian's authority over the children's upbringing or decision-making for the children.
- ☐ The guardian should share decision-making authority and access to records with parent/s and/or children as ordered in sections **18** and **19** below because: _____
- _____
- _____
- ☐ Other findings: _____
- _____
- _____

12. Limits on Parents

- ☐ Does not apply.
- ☐ The court should limit contact, decision-making, and access to records for the following reasons:
- ☐ Mandatory limiting factors from RCW 26.09.191 – A parent has one or more of these problems as follows (*check all that apply*):
- ☐ **Abandonment** – (*Parent's name*): _____ intentionally abandoned a child listed in section **1** for an extended time.
- ☐ **Child abuse** – (*Parent's name*): _____
(or someone living in that parent's home) abused or threatened to abuse a child. The abuse was (*check all that apply*): ☐ physical ☐ repeated emotional abuse.
- ☐ **Domestic violence** – (*Parent's name*): _____
(or someone living in that parent's home) has a history of domestic violence, as defined in RCW 7.105.010.
- ☐ **Assault** – (*Parent's name*): _____ (or someone living in that parent's home) has assaulted someone causing grievous physical harm or causing fear of such harm, or sexually assaulted someone.
- ☐ **Sex offense or sexual abuse of a child** by a parent or a person living with a parent.

You may use Attachment B to the Parenting Plan, FL All Family 140, to address sex offense or sexual abuse of a child and related restrictions.

- ☐ Other limiting factors from RCW 26.09.191 – A parent has one or more of these problems as follows (*check all that apply*):
- ☐ **Neglect** – (*Parent's name*): _____ neglected their parental duties towards a child listed in section 1.
- ☐ **Emotional or physical problem** – (*Parent's name*): _____ has a long-term emotional or physical problem that interferes with their performance of parenting functions.
- ☐ **Substance abuse** – (*Parent's name*): _____ has a long-term problem with drugs, alcohol, or other substances that interferes with their performance of parenting functions.
- ☐ **Lack of emotional ties** – (*Parent's name*): _____ has few or no emotional ties with a child listed in section 1.
- ☐ **Abusive use of conflict** – (*Parent's name*): _____ has engaged in ongoing and deliberate actions to misuse conflict.
- ☐ **Withholding the child** – (*Parent's name*): _____ has kept the other parent away from a child listed in section 1 for a long time, without a good reason. Withholding does not include protective actions taken by a parent in good faith for the legitimate and lawful purpose of protecting themselves or the parent's child from the risk of harm posed by the other parent.
- ☐ **Other (specify)**: _____

13. Support, Insurance, and Taxes

The court has considered whether to order child support, health insurance, and allocation of tax exemptions. The court finds:

- ☐ Child support, health insurance, and taxes should be ordered as described in section 22 below.
- ☐ The court is **not** ordering child support, health insurance, or taxes because: _____
- _____
- ☐ Other findings: _____
- _____
- _____

14. Protection Order

- ☐ No one requested an *Order for Protection*.
- ☐ (*Name*) _____ requested an *Order for Protection* in a separate but related (linked) case number _____

[] Other findings: _____

➤ **The Court Orders:**

15. Guardianship

Approved. A guardianship is approved for the following children: _____

(Name/s) _____ is/are appointed as guardian of the children listed above. The children shall live with the guardian.

The Minor Guardianship is:

[] **Limited.** The limitations on the guardian's authority are listed in sections **18** through **20**.

[] **Full.** Parents have no visitation or decision-making authority.

To the Clerk:

- **Issue letters:** Once the guardian files an *Acceptance of Appointment*, the clerk of the court shall issue *Letters of Guardianship* for the children to the guardian. The letters shall be valid until the expiration date listed in the **Guardianship Summary** in section **1**.
- **Terminate** any linked Emergency Guardianship cases.

16. Lay Guardian Training

Complete at <https://www.courts.wa.gov/guardianportal/index.cfm?fa=guardianportal.title11minor>

[] The guardian provided proof of completion of lay guardian training.

[] The guardian must file proof of completion of lay guardian training within 90 days.

[] The lay guardian training is waived.

17. Future notice to parents and other people (if any)

The guardian/s must notify the parents and any other people the court orders are entitled to notice in section **1 (Guardianship Summary)** if any of these things happen:

- The guardian delegates custody of the children,
- The court changes or limits the guardian's powers, or
- The court removes the guardian,
- Other: _____

18. Guardian's Authority

[] The guardian/s have the authority to make **all** decisions and determine the children's upbringing, including their education, healthcare, religious training, passport, travel, and driver licensing (*skip to section 19*).

- ☐ Some decision-making must be shared. The guardian must share decision-making with parent/s or children as follows (*fill out the table*):

Type of Major Decision	Guardian/s Decide	Guardian/s and Parent/s Decide Together (<i>write name or "both parents"</i>)	Parent/s Decide (<i>write name or "both parents"</i>)	Child Decides (<i>write name/s or "all children"</i>)
School / educational	☐	☐ _____	☐ _____	☐ _____
Healthcare (not emergency)	☐	☐ _____	☐ _____	☐ _____
Authority to apply for passport and travel internationally:	☐	☐ _____	☐ _____	☐ _____
Driver's license or state I.D.:	☐	☐ _____	☐ _____	☐ _____
Other:	☐	☐ _____	☐ _____	☐ _____
Other:	☐	☐ _____	☐ _____	☐ _____

☐ Other: _____

19. Access to Children's Records

A parent's right to access the children's records can only be limited if a finding has been made in Section 12. The children may have the right to access and control access to their records under other laws.

The following people have the right to access the children's records:

- The guardian can access all records.
- Parent (*name*): _____ can access (*check one*):
 - ☐ All records
 - ☐ All records except (*specify school/educational, healthcare, other*): _____
 - ☐ Only these records (*specify school/educational, healthcare, other*): _____
 - ☐ None.
- Parent (*name*): _____ can access (*check one*):
 - ☐ All records
 - ☐ All records except (*specify school/educational, healthcare, other*): _____
 - ☐ Only these records (*specify school/educational, healthcare, other*): _____

-
- ☐ None.
- ☐ Other: _____
-

20. Parents' Visitation

Use the Visitation Attachment (form GDN M 104) for more detailed options for phased-in visitation, supervision, evaluation, treatment, or other requirements.

The parents' visitation shall be as follows (*check all that apply*):

- ☐ The visitation schedule for (*name/s*) _____ is:
- _____
- _____
- _____

- ☐ The visitation for (*name/s*) _____ is listed in *Visitation Attachment* (form GDN M 104).

- ☐ The children will have no visitation with (*name/s*) _____ because of RCW 26.09.191 or .192 limiting factors found in section **12**.

Public Events (including school events)

- ☐ Parent/s (*name*) _____ **may** attend public events involving their children unless there is a court or trespass order preventing that.
- ☐ Parent/s (*name*) _____ **may not** attend public events involving their children.

21. Moving with Children (Relocation)

Anyone with majority or substantially equal residential time (at least 45 percent) who wants to move with the children **must notify** every other person who has court-ordered time with the children.

Move to a different school district

If the move is to a different school district, the guardian must complete the form *Notice of Intent to Move with Children* (FL Relocate 701) and deliver it at least **60 days** before the intended move.

Exceptions:

- If the guardian could not reasonably have known enough information to complete the form in time to give 60 days' notice, the guardian must give notice within **5 days** after learning the information.
- If the guardian is relocating to a domestic violence shelter or moving to avoid a clear, immediate, and unreasonable risk to health or safety, notice may be delayed **21 days**.
- If information is protected under a court order or the address confidentiality program, it may be withheld from the notice.

- A guardian who believes that giving notice would put themselves or a child at unreasonable risk of harm may ask the court for permission to leave things out of the notice or to be allowed to move without giving notice. Use form *Motion to Limit Notice of Intent to Move with Children (Ex Parte)* (FL Relocate 702).

The *Notice of Intent to Move with Children* can be delivered by having someone personally serve the other party or by any form of mail that requires a return receipt.

If the guardian wants to change the *Residential Schedule* because of the move, they must deliver a proposed *Residential Schedule* together with the *Notice*.

Move within the same school district

If the move is within the *same* school district, the guardian still has to let the notice parties and the court know. However, the notice does not have to be served personally or by mail with a return receipt. Notice to the notice parties can be made in any reasonable way. No specific form is required.

Warning! If you do not notify

A guardian who does not give the required notice may be found in contempt of court. If that happens, the court can impose sanctions. Sanctions can include requiring the guardian to bring the children back if the move has already happened, and ordering the guardian to pay the other side's costs and lawyer's fees.

Right to object

A person who has court-ordered time with the children can object to a move to a different school district and/or to the guardian's proposed *Residential Schedule*.

An objection is made by filing the *Objection about Moving with Children and Petition about Changing a Parenting/Custody Order (Relocation)* (form FL Relocate 721). File your *Objection* with the court and serve a copy on the guardian and anyone else who has court-ordered time with the children. Service of the *Objection* must be by personal service or by mailing a copy to each person by any form of mail that requires a return receipt. The *Objection* must be filed and served no later than **30 days** after the *Notice of Intent to Move with Children* was received.

Right to move

During the 30 days after the *Notice* was served, the guardian may not move to a different school district with the children unless they have a court order allowing the move.

After the 30 days, if no *Objection* is filed, the guardian may move with the children without getting a court order allowing the move.

After the 30 days, if an *Objection* has been filed, the guardian may move with the children **pending** the final hearing on the *Objection unless*:

- The other party gets a court order saying the children cannot move, or
- The other party has scheduled a hearing to take place no more than 15 days after the date the *Objection* was served on the guardian. However, the guardian may ask the court for an order allowing the move even though a hearing is pending if the guardian believes that they or a child are at unreasonable risk of harm.

The court may make a different decision about the move at a final hearing on the *Objection*.

Residential Schedule after move

If the guardian served a proposed *Residential Schedule* with the *Notice*, **and** if no *Objection* is filed within 30 days after the *Notice* was served (or if the parties agree):

- Both parties may follow that proposed schedule without being held in contempt of the *Residential Schedule* that was in place before the move. However, the proposed schedule cannot be enforced by contempt unless it has been approved by a court.
- Either party may ask the court to approve the proposed schedule. Use form *Ex Parte Motion for Final Order Changing Parenting Plan – No Objection to Moving with Children* (FL Relocate 706).

Forms

You can find forms about moving with children at:

- The Washington State Courts' website: www.courts.wa.gov/forms,
- Washington Law Help: www.washingtonlawhelp.org, or
- The Superior Court Clerk's office or county law library (for a fee).

(This is a summary of the law. The complete law is in RCW 26.09.430 through 26.09.480.)

22. Support, Insurance, and Taxes

- ☐ The court is not issuing an order about support, health insurance, or taxes at this time.
- ☐ **Child support** – The court signed the final *Child Support Order* and *Worksheets* filed separately today or on (date): _____.
- ☐ **Health insurance or other expenses** – The parents must pay for health insurance, uninsured medical, daycare, or other necessary expenses (*check one*):
- ☐ as listed on the final *Child Support Order*.
- ☐ as follows (*specify*): _____
- ☐ **Tax issues** – The parties have the right to claim the children as their dependents for purposes of personal tax exemptions and associated tax credits on their tax forms as follows:
- ☐ as listed on the *Child Support Order*.
- ☐ the appointed guardian may claim the children.
- ☐ other (*specify*): _____
- ☐ Other: _____

23. Protection Order

- ☐ No one requested a *Protection Order* in this case.
- ☐ Any order about the *Protection Order* is filed in a separate case.

24. Guardian ad Litem or Court Visitor Fees

- ☐ Does not apply.
- ☐ The Guardian ad Litem (GAL) or Court Visitor (Visitor) is discharged from this case.
- ☐ The GAL or Visitor fees and costs are approved as reasonable in the total amount of \$_____.

They shall be paid from ☐ the county ☐ split between the parties as follows:

☐ Other (specify): _____

25. Lawyers and Legal Fees

☐ The following lawyers who were appointed by the court are discharged:

☐ The legal fees and costs for the children's lawyer are approved as reasonable in the amount of \$_____.

☐ The legal fees and costs for the children's lawyer shall be paid for by the county.

☐ The legal fees and costs for the parent's (name) _____ lawyer are approved as reasonable in the amount of \$_____.

☐ The legal fees and costs for the parent's (name) _____ lawyer shall be paid for by the county.

☐ The children had no legal fees.

26. Successor Guardian

(Name): _____
should be appointed the Successor Guardian if the following event occurs (list the designated event): _____

27. Other Orders (if any)

Ordered.

Date

Presented by:

Signature of Party/Lawyer

Copy received and approved by:

Signature of Party/Lawyer

Signature of Party/Lawyer

Judge or Commissioner

Printed Name

WSBA No.

Printed Name

WSBA No.

Printed Name

WSBA No.

▶ _____
Signature of Court Visitor

Printed Name *WSBA No.*

▶ _____
Signature of Guardian

Printed Name *CPGC No.*